



Iran (Temporary Powers) Act 1980

1980 CHAPTER 28

An Act to enable provision to be made in consequence of breaches of international law by Iran in connection with or arising out of the detention of members of the embassy of the United States of America.

[15th May 1980]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Powers with respect to certain contracts relating to or connected with Iran.

1.—(1) Her Majesty may by Order in Council make such provision in relation to contracts in any way relating to or connected with Iran, being either contracts for services or contracts for the sale, supply or transport of goods, as appears to Her to be necessary or expedient in consequence of breaches of international law by Iran in connection with or arising out of the detention of members of the embassy of the United States of America.

(2) An Order in Council under subsection (1)—

- (a) shall not apply to any contract made before the date on which the Order is made; and
- (b) shall not apply to any contract with a bank or other financial institution for the provision of banking or other financial services.

(3) Without prejudice to the generality of subsection (1), but subject to subsection (2), an Order in Council under subsection (1) may make such provision for imposing prohibitions, restrictions or obligations in respect of contracts within subsection (1) as appears to Her Majesty to be necessary or expedient as aforesaid.

(4) Any provision made by or under an Order in Council under subsection (1) may apply to acts or omissions outside as well as within the United Kingdom or other country or territory to which the Order extends; but no provision so made shall render a person guilty of an offence in respect of anything done or omitted by him otherwise than within, or within the territorial waters of, the United Kingdom or a country or territory to which this Act extends unless at the time of the act or omission that person is—

- (a) a citizen of the United Kingdom and Colonies, a person who is a British subject by virtue of section 2, 13 or 16 of the British Nationality Act 1948 or the British 1948 c. 56. Nationality Act 1965 or a British protected person 1965 c. 34. within the meaning of the said Act of 1948; or
- (b) a body incorporated or constituted under the law of any part of the United Kingdom or the law of any other country or territory to which this Act extends; or
- (c) in control of a ship or aircraft registered in the United Kingdom or any other country or territory to which this Act extends.

(5) An Order in Council under this section may make or authorise the making of such incidental, supplemental and consequential provisions as appear to Her Majesty to be expedient for the purposes of the Order.

(6) An Order in Council under this section shall be laid before Parliament after being made and shall expire at the end of the period of twenty-eight days beginning with the day on which it was made unless during that period it is approved by resolution of each House of Parliament.

The expiration of an Order in pursuance of this subsection shall not affect the power to make a new Order; and in calculating the period aforesaid no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

2.—(1) This Act may be cited as the *Iran (Temporary Powers) Short title, etc. Act 1980*.

(2) This Act shall come into force on 17th May 1980.

(3) Section 1 shall continue in force until such date as Her Majesty may by Order in Council appoint, and shall then expire.

(4) Her Majesty may by Order in Council make such provision in relation to contracts of any description mentioned in section 1(1) as appears to Her to be necessary or expedient in connection with the expiration of section 1; and an Order in Council under this subsection may make or authorise the making of such incidental, supplemental and consequential provisions as appear to Her Majesty to be expedient for the purposes of the Order.

(5) This Act extends to the Channel Islands, the Isle of Man and any colony and (to the extent of Her Majesty's jurisdiction therein) to any foreign country or territory in which for the time being Her Majesty has jurisdiction.